

In the second affirmative defense, CSAAVE alleges that the petition is barred by laches. The affirmative defense of laches requires pleading facts that give rise to that defense, or relying facts on the face of the petition. (*Hollenbeck Lodge (486) I.O.O.F. v. Wilshire Boulevard Temple* (1959) 175 Cal.App.2d 469, 475.) Here, CSAAVE clarified that this defense is based upon Petitioner's failure to act between August 26, 2025, and November 20, 2025. The petition was filed on November 20 and it alleges that CSAAVE denied Petitioner's application on August 26. (Pet. ¶1 and date petition was filed.) Thus, the defense of laches is sufficiently alleged. Therefore, the motion to strike the second affirmative defense is denied.

In the third affirmative defense, CSAAVE alleges that the petition is barred by waiver and/or estoppel. In the opposition, CSAAVE argues that some of facts in the petition support waiver, but they did not include those facts here. Therefore, the Court grants the motion to strike the third affirmative defense with leave to amend.

In the fourth affirmative defense, CSAAVE alleges that the petition is barred by the doctrine of unclean hands as Petitioner makes false statements in her petition. The Court finds that CSAAVE has included facts to support this affirmative defense. Therefore, the motion to strike the fourth affirmative defense is denied.

#### Discovery Law & Motion

**21. 9:01 AM CASE NUMBER: C25-01233**  
**CASE NAME: SAYED MASSOUD VS. TOYOTA MOTOR SALES, U.S.A., INC.**  
**\*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM**  
**INTERROGATORIES BY DEF TOYOTA MOTOR SALES, U.S.A., INC.**  
**FILED BY: MASSOUD, SAYED**  
**\*TENTATIVE RULING:\***

Withdrawn by Notice of Withdrawal filed May 5, 2026. The matter is DROPPED from calendar.

**22. 9:01 AM CASE NUMBER: C25-01233**  
**CASE NAME: SAYED MASSOUD VS. TOYOTA MOTOR SALES, U.S.A., INC.**  
**\*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL**  
**INTERROGATORIES BY DEF TOYOTA MOTOR SALES, U.S.A., INC.**  
**FILED BY: MASSOUD, SAYED**  
**\*TENTATIVE RULING:\***

Withdrawn by Notice of Withdrawal filed May 5, 2026. The matter is DROPPED from calendar.

**23. 9:01 AM CASE NUMBER: C25-01233**

**CASE NAME: SAYED MASSOUD VS. TOYOTA MOTOR SALES, U.S.A., INC.**

**\*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION BY DEF TOYOTA MOTOR SALES, U.S.A., INC.**

**FILED BY: MASSOUD, SAYED**

**\*TENTATIVE RULING:\***

Withdrawn by Notice of Withdrawal filed May 5, 2026. The matter is DROPPED from calendar.

**Law & Motion**

**Add On**

**24. 9:00 AM CASE NUMBER: MSC19-02043**

**CASE NAME: GARAVENTA VS AZARI**

**\*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO TO MEHRZAD AZARI**

**FILED BY: GARAVENTA, SILVIO**

**\*TENTATIVE RULING:\***

Before the Court are two separate motions brought by plaintiff Silvio Garaventa, Jr. ("Plaintiff"), a motion to compel further responses to discovery requests and a motion addressing reopening discovery deadlines and related relief.

**Background**

On January 27, 2026, Plaintiff filed a Motion to Reopen Discovery and/or, in the alternative, Allow Plaintiff to Serve a Tardy Expert Witness Disclosure (the "Motion to Reopen Discovery"). The Motion to Reopen Discovery was originally set for hearing on July 23, 2026. However, the motion was advanced, upon ex parte application, for hearing on May 7, 2026. See Order entered February 3, 2026. Following reassignment of this case, the matter was reset for hearing on May 4, 2026. The Court, *sua sponte*, continued the matter from May 4, 2026 to May 11, 2026.

Plaintiff filed a Request for Judicial Notice in connection with the Motion to Reopen Discovery (the "RJN"). The RJN is DENIED as unnecessary. The RJN relates to an ex parte application in this case on January 12, 2026 and the Court's January 14, 2026 Order (the "January 14th Order"). Both pleadings appear of record and the Court need not take judicial notice of matters in the same case before the Court. The Court has considered its file, including those pleadings.

By the Court's January 14th Order, the prior February 23, 2026 trial date was vacated. The order also declined to extend any discovery related deadlines. See January 14th Order, p.2.

The Court notes that it recently set the matter for a long-cause court trial on November 16, 2026. See Order entered April 22, 2026 (the "April 22nd Order").

On January 22, 2026, Plaintiff filed a motion to compel further responses to discovery requests ("Motion to Compel Further Responses") propounded upon defendant Mehrzad Azari ("Defendant").